REPORTABLE (5)

(1) VALENTINE MAPONGA (2) PAIDAMOYO MUZULU

(3) FIRINNE TRUST TRADING AS VERITAS

V

(1) THE MINISTER OF JUSTICE, LEGAL

AND PARLIAMENTARY AFFAIRS

(2) THE ATTORNEY-GENERAL OF ZIMBABWE

(3) THE PARLIAMENT OF ZIMBABWE

CONSTITUTIONAL COURT OF ZIMBABWE
GARWE JCC, MAKARAU JCC, GOWORA JCC, HLATSHWAYO JCC, PATEL JCC, GUVAVA AJCC & MAVANGIRA AJCC
HARARE, 10 SEPTEMBER 2025 & 26 MAY 2026

T R Mafukidze with G Nyoni and C Kwaramba, for the applicants
M Chimombe, for the first and second respondents
S Hoko, for the third respondent

GARWE JCC:

[1] On 2 May 2024, the applicants filed a court application in the High Court of Zimbabwe (the Court *a quo*) seeking an order declaring s 22A of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*], introduced by the Criminal Law (Codification and Reform) Amendment Act No. 10 of 2023, *ultra vires* the Constitution of Zimbabwe, 2013 (the Constitution) and therefore invalid. More specifically, the applicants alleged that ss 22A(2) and 22A(3) violated their rights to a fair public trial enshrined in s 69(1) of the Constitution, their right to freedom

of assembly and association (s 58) and the right to freedom of expression and the media (s 61).

[2] On 9 June 2025, the Court *a quo* rendered its judgment. It found s 22A(2) to be constitutionally compliant. In respect of s 22A(3), the Court found that it was vague, imprecise and ambiguous and therefore constitutionally invalid. The Court consequently issued an order, firstly, dismissing the challenge to the validity of s 22A(2) and, secondly, granting a declaration of invalidity in respect of s 22A(3) of the Act on the basis that the section infringed ss 39, 58, 61 (1), 67(3) and 69(1) of the Constitution.

[3] Pursuant to the provisions of s 175(1) of the Constitution, as read with r 39 of the Constitutional Court Rules, 2025, the Registrar of the High Court forwarded the record of the proceedings for confirmation by this Court.

[4] Having considered the proceedings before the Court *a quo* in detail, I reach the conclusion that the declaration of invalidity made by the Court *a quo* cannot be confirmed. In the first instance, the application filed before the Court *a quo* was incurably irregular. Secondly, the applicants did not demonstrate that they had the necessary standing to approach the Court under s 85 of the Constitution. The cause of action that they brought before the Court *a quo* was therefore in the abstract. Thirdly, the Court *a quo* adopted a wrong approach in interpreting s 22A(3) and the penalties prescribed in that provision. The declaration of invalidity that it made was not consistent with the law and cannot therefore be confirmed.

[5] Notwithstanding the finding, *inter alia*, that the application was irregular in a number of respects, a declaration of invalidity having been made, the interests of justice dictate that this Court deals with the substance of the dispute, namely the constitutional validity of s 22A(3), in order to ensure legal certainty. This is the approach taken by the Constitutional Court of South Africa in a number of decided cases – see Max du Plessis, Glenn Penfold and Jason Brickhill, *Constitutional Litigation,* at pp 95-96 and pp 103-104 – and more specifically the remarks by YACOOB J in *Lawyers for Human Rights & Anor* v *Minister of Home Affairs & Anor* 2004(4) SA 125 (CC), at para 24.

[6] My considered view is that this Court should adopt a similar approach. Declining confirmation on the basis, for example, that the application in the Court *a quo* was irregular, that the court should have declined jurisdiction or that the applicants did not demonstrate that they had standing, whilst pertinent in confirmation proceedings, would not result in legal certainty, as the need for clarity on the constitutional validity of the invalidated law would remain. Ultimately, it is this consideration that must prevail. Other considerations must remain subsidiary to this overarching requirement. This court has also stated, in *Gonese* v *Minister of Finance and Economic Development* CCZ 11/23, that in considering whether or not to confirm an order of constitutional invalidity made by a lower court, this court should consider the judgment of the Court as a whole and satisfy itself that it was correctly made. This Court stated at p. 13 of the judgment:

> "Where this Court reaches the conclusion that the order of invalidity made by the lower court cannot be confirmed, it behoves the Court to clearly delineate the basis or bases upon which it determines that the decision made by the lower court was incorrect. A decision to decline

confirmation may therefore be predicated on just one or several bases, be they procedural or substantive and irrespective of whether or not one basis may, ordinarily, be fully dispositive of the matter on its own…"

I fully commend such an approach.

FACTUAL BACKGROUND

[7] The first and second applicants are journalists practising in Zimbabwe. The third applicant is a trust duly registered in terms of a deed of trust with the capacity to sue and be sued and operates under the appellation *Veritas*. The first respondent, the Minister of Justice, Legal and Parliamentary Affairs, is the authority to whom the administration of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the Criminal Law Code") has been assigned and is cited in his official capacity. The second respondent is the Attorney-General of Zimbabwe, also cited in her official capacity, whose functions are, *inter alia*, to act as the principal legal adviser to the Government in civil and constitutional proceedings. The third respondent, the Parliament of Zimbabwe, exercises legislative authority to make laws for the peace, order and good governance of Zimbabwe.

[8] Pursuant to the Criminal Law (Codification and Reform) Amendment Act No. 10 of 2023, Parliament amended the Criminal Law Code, by the insertion of a new s 22A. That section now reads:

"22A Wilfully injuring the sovereignty and national Interest of Zimbabwe

(1) In this section –
"actively partake", in relation to …..
"agent, proxy or entity"…..
"economic sanctions or trade boycott" means …..
"meeting" means…
(2) Any citizen or permanent resident of Zimbabwe (hereinafter in this section called "the accused") who, within or outside Zimbabwe

actively partakes (whether himself or herself or through an agent and whether on his or her own initiative or at the invitation of the foreign government concerned or any of its agents, proxies or entities) in any meeting whose object the accused knows or has reasonable grounds for believing involves the consideration of or the planning for –

(a) military or other armed intervention in Zimbabwe by the foreign government concerned or another foreign government, or by any of their agents, proxies or entities; or
(b) subverting, upsetting, overthrowing or overturning the constitutional government in Zimbabwe;

shall be guilty of wilfully damaging the sovereignty and national interest of Zimbabwe and liable to –

(i) the same penalties as for treason, in a case referred to in paragraph (a); or
(ii) the same penalties as for subverting constitutional government, in a case referred to in paragraph (b).

(3) Any citizen or permanent resident of Zimbabwe who, within or outside Zimbabwe, intentionally partakes in any meeting whose object or one of whose objects the accused knows or has reasonable grounds for believing involves the consideration of or the planning for the implementation or enlargement of sanctions or a trade boycott against Zimbabwe (whether those sanctions or that boycott is untargeted, or targets any individual or official or class of individuals or officials, but whose effects indiscriminately affect the people of Zimbabwe as a whole or any substantial section thereof) shall be guilty of wilfully damaging the sovereignty and national interest of Zimbabwe and liable to –

(i) a fine not exceeding level 12 or imprisonment for a period not exceeding ten years, or both;
(ii) or alternatively on the motion of the prosecutor, to any one or more of the following, if the offence is attended by aggravating circumstances, referred to in the subsection (4) or (6)-
A. termination of the citizenship of the convicted person, if the convicted person is a citizen by registration or a dual citizen:
Provided that the convicting court shall not impose this penalty if it would effectively render the convicted person stateless;
B. cancellation of the permanent resident status of the convicted person, if the convicted person is a permanent resident; or
C. prohibition from being registered as a voter or voting at an election for a period of at least five years but not exceeding fifteen years; or

D. prohibition from filling a public office for a period of at least five years but not exceeding fifteen years, and if he or she holds any such office, the convicting court may declare that that office shall be vacated by the convicted person from the date of his or her conviction, unless the tenure of the public office in question is regulated exclusively by or in terms of the Constitution-

in consideration of the sentence the court must have regard to the impact of the meeting and whether or not sanctions or trade embargo were imposed.

(4) Subject to subsection (5) and (6) it shall be an aggravating circumstance to a charge of wilfully damaging the sovereignty and national interest of Zimbabwe under subsection (3)-

(a) to prove that any economic sanctions or trade boycott against Zimbabwe (or against any individual or official or class of individuals or officials whose effects indiscriminately affect the people of Zimbabwe as a whole or any substantial section thereof) were implemented as a result of any action taken by the accused;
(b) if there is evidence showing beyond a reasonable doubt that, though the meeting in question did not result in economic sanctions against or a trade boycott of Zimbabwe, the person made or submitted for consideration or endorsed any statement which he or she knew to be false or had no reasonable basis for believing to be true (in which event the defence referred to in subsection (4) shall not avail him or her).

(5) In any prosecution for an offence against subsection (3) it shall not be a defence that the accused did not at first know or realise that the meeting which is subject to the charge involved the consideration of sanctions against or a trade boycott of Zimbabwe if after that topic was raised by any participant at the meeting the accused can be proved to have promoted, advanced, encouraged or advocated for the imposition of sanctions or a trade boycott against Zimbabwe."

[9] On 2 May 2024, the applicants filed an application in the High Court of Zimbabwe challenging the constitutional validity of the above amendment. Purporting to act in his personal capacity under s 85(1)(a), the first applicant attached a founding affidavit challenging the constitutional validity of the law, alleging that its provisions were in breach of his right to a fair public trial enshrined in s 69(1) of the Constitution, the right to freedom of assembly and

association under s 58 and the right to freedom of expression and the media under s 61 of the Constitution. He also averred that the penalty provisions of s 22 A(3) were an infringement of his right to a fair "and impartial trial" enshrined under s 69(1) and (3) as well as the right to equal protection and benefit of the law under s 56(1) of the Constitution. He also sought to impugn the constitutionality of the sentence of death provided for under s 20(1) of the Criminal Law Code.

[10] He stated that s 22A(2) and (3) were constitutionally invalid because they were vague, imprecise and over-broad and therefore violated the principle of legality which is the bedrock of a fair trial. The sentence of death was impugned on the basis that s 48 of the Constitution allowed the imposition of the death penalty only in murder cases committed in circumstances of aggravation. The penalty provisions of s 22A(3) were said not to be proportional or rationally connected to the offence. The alternative sentences relating to termination of citizenship, prohibition from being registered as a voter and prohibition from holding public office were said to be inconsistent with ss 39 and 67(3) of the Constitution.

[11] The first applicant further stated that the mere presence of a person at a meeting which discusses the matters proscribed by the amendment would give rise to criminal liability. Further, that whilst the definition section of s 22A defines the phrase "actively partake", s 22A(3) uses the phrase, "intentionally partakes" but does not define the term.

[12] The applicants' argument went as follows. A Zimbabwean official visiting the World Bank and the International Monetary Fund to discuss the country's arrears and sanctions imposed on Zimbabwe by these organisations could face criminal prosecution. Zimbabwe is also a member of a number of international organisations such as the United Nations, International Labour Organisation, the AU and the WHO, organisations that can impose sanctions on countries that are non-compliant with their charters. Section 22A therefore violates the right to freedom of expression and association.

[13] The additional penalties imposable under 22 A 3 (ii) were said to fetter the discretion of the Court and therefore violated the right to a free and fair trial.

[14] On *locus standi,* the first applicant stated that he was approaching the Court under s 85(1)(a) of the Constitution. He stated that he had been a journalist for over twenty years and had covered many important events both within and without Zimbabwe. He has, in the past, attended meetings which have discussed the human rights situation in Zimbabwe and during which Zimbabwe's culpability as well as ways and means to hold the government to account were discussed. He stated that in all these meetings he has not taken part in any discussions and has merely observed as a journalist.

[15] The second applicant also filed, in the same application, what he termed a founding affidavit. He stated that he was bringing the application in terms of s 85(1)(d) of the Constitution and, like the first applicant, also sought to challenge

the constitutionality of s 22A and s 20(1) of the Criminal Law Code. It was his submission that the law in question violated ss 69(1), 61, s 58 and 48 of the Constitution. He stated that he was a long-standing journalist and was incorporating the contents of the affidavit of the first applicant into his affidavit in order to show the background to the dispute and the basis on which he claimed the law was not valid. Lastly, he stated that the law in question – sometimes referred to as the "Patriotic Act" – was "clearly a matter of public interest" and that the Court *a quo* should have had "no problem in accepting the fact that I have jurisdiction (*sic*) to bring the instant application".

[16] The third applicant, Veritas, was represented in the same application by its executive director, one Valerie Anne Ingham-Thorpe. It also filed a founding affidavit in which it stated that "it attends a multitude of meetings, locally and internationally with different human rights bodies and individuals". It stated that any of the meetings can potentially be sanctioned under s 22A of the Criminal Law Code. It stated that it was bringing the application under s 85(1)(d) of the Constitution seeking to challenge the constitutionality of s 22A and 20(1) of the Criminal Law Code on the basis that the law violated rights under s 69(1), 61, 58, and 48 of the Constitution. Like the second applicant, it also sought to incorporate the contents of the first applicant's affidavit on the background to, and legality of, ss 22A and 20(1) of the Criminal Law Code and suggested that the law in question was clearly a matter of public interest.

[17] The applicants consequently sought an order declaring s 22A of the Criminal Law Code *ultra vires* the Constitution and a further order setting it aside. No

relief was sought declaring that the law violated particular sections of the Declaration of Rights.

[18] The first and second respondents opposed the application. They disputed that the offence was vague. They submitted that s 22A(2) is couched with sufficient clarity and that its scope is very clear as no one can claim to have the fundamental right to unlawfully overthrow a constitutionally elected government or engage a foreign government to instigate military or other armed intervention in the country or to impose sanctions against the Government or some of its citizens. They argued that the section does not prohibit participation in gatherings or groups in order to influence, criticise or challenge the government. As regards the death penalty, the respondents accepted that the sentence is imposable only if the requirements of s 48 of the Constitution are met. They further denied that the impugned law violated ss 39 and 67 of the Constitution.

[19] The third respondent, the Parliament of Zimbabwe, similarly opposed the application. It took certain points *in limine*. Firstly, that the filing of three separate founding affidavits in one application was improper. It averred that the affidavits of the second and third applicants should simply have been filed as supporting affidavits and not founding affidavits. It was also submitted that, as the applicants' causes of action were different, they could not have properly approached the Court *a quo* on the same application. The first applicant had approached the Court acting in his own interests under s 85(1)(a) whilst the second and third had done so under s 85(1)(d) – namely, in the public interest. The causes of action were therefore said to be mutually exclusive, rendering the application fatally defective.

[20] Secondly, the Parliament averred that the interest demonstrated in the application was very remote as the issues raised were merely anticipatory and speculative. No direct and substantial interest had been demonstrated by the first applicant. Neither had the second and third applicant demonstrated how the public had an interest in the relief sought in the Court *a quo*.

[21] Thirdly, the Parliament averred that, as the applicants had not, in their draft order, sought a declaration that the impugned law violated certain fundamental rights and only sought a declaration that s 22A was unconstitutional, the application was therefore fatally defective.

[22] On the merits, the Parliament submitted that the amendment was lawful and intended to protect the unity, sovereignty and existence of Zimbabwe as a state. It gave a list of nine countries which it stated had provisions similar to s 22A. Zimbabwe, as a country, had suffered considerably from sanctions imposed by the United States under the ZIDERA Act and trade restrictions imposed by certain European countries. The law in question was intended to deter individuals who sought to harm Zimbabwe's economic and democratic interests in meetings convened with foreign governments for this purpose.

[23] Parliament further submitted that it was difficult to understand how the law in question could be said to have violated the applicant's right to equal protection under s 56(1) and the right to a fair trial under s 69(1). No detail on the unequal

treatment was given. On the suggestion that the penalties were harsh and disproportionate to the crime, the Parliament submitted that the conduct that threatens the very existence of Zimbabwe as a country must be met with a tough penalty, commensurate with the conduct proscribed by the section.

[24] As regards s 20(1) of the Act, which provides for the same penalties as for treason, including the death penalty, Parliament stated that there was a Bill before it which sought to abolish the death penalty. In those circumstances, its view was that it would be unwise to interfere and declare s 20 of the Criminal Law Code unconstitutional. In any event, so Parliament argued, no declaration had been sought in the draft order that s 20 of the Act was unconstitutional. The Court could not therefore make such a declaration.

[25] Parliament further averred that, in seeking to enforce rights to freedom of association and movement so that the applicants could meet whomsoever they wanted, the applicants had deliberately overlooked the negative effect of such conduct on the general citizenry and the economic sanctions that have devastated the Zimbabwean economy over the years. The applicants could not have relied on the right to freedom of expression and movement in order to justify meeting with foreign agents to call for sanctions against the country. Whatever rights the applicants may have enjoyed in terms of s 58 and 61 were not absolute and could be limited in the public interest. It further averred that the penalties were proportional. A prohibition from voting or holding public office on a person who has called for the overthrow of the government or economic sanctions against the same government he hopes to serve in a public office was warranted.

[26] As regards the third applicant, a trust, the Parliament averred that, although it is not a natural person, it claims that "its meetings" can be sanctioned under s 22A. How its rights in terms of s 69(1), 61, 48 and 58 of the Constitution were being violated had not been demonstrated.

[27] In their response, the applicants stated that any person can be arrested for just attending a meeting, which ends up discussing penalties, even where that person is quiet throughout the meeting. They further stated that it mattered not that they had approached the Court under s 85(1)(a) and 85(1)(d), as this should not affect the obligation on the Court to clarify and define whether s 22A is constitutional. They further submitted that an application under s 85(1)(a) by one applicant cannot be defeated by another application brought under s 85(1)(d) and that the attempt to restrict the wide standing under s 85(1) in constitutional matters should not be accepted. The applicants also denied that there are other countries with similar legislation to s 22A of the Criminal Law Code.

[28] On the penalty provisions, they submitted that the provisions are invalid as they are not proportional or rationally connected to the offence in question. The penalties infringe the right to a fair trial under s 69(1) of the Constitution and the right to equal protection under s 56(1) of the Constitution.

[29] In their heads of argument, in dealing with the preliminary point taken by the respondents on standing, the applicants severely criticised this Court, alleging

that the development of jurisprudence is being " severely affected by a legal regime that has heightened constitutional technicalities" to bar litigants from realising their constitutional rights. They further cited with approval criticism by a named senior legal practitioner that the application of constitutional avoidance, subsidiarity and ripeness, as well as the restrictive application of procedural rules, was an infringement of the right of access enshrined under s 69 (3) of the Constitution of Zimbabwe. As far as they were concerned, whether brought in their personal interest or in the public interest, it was clear the matter had been brought in the public interest because the law criminalises mere attendance and presence at a meeting, thereby creating a strict liability offence.

[30] The first and second respondents submitted, in heads of argument, that the section did not create a strict liability offence. One of the requirements was that a person must attend the meeting whose object is considering sanctions with the knowledge that the imposition of sanctions was to be the object of the meeting and thereafter partake in the meeting on that basis.

[31] The third respondent, Parliament, submitted in its heads of argument that the procedure adopted by the applicants, namely, the filing of three separate founding affidavits seeking the same relief in the same application but relying on different categories of standing, was unheard of in this jurisdiction. Moreover, the first applicant, who had purported to approach the court in his personal interest, had not shown how his own interest was affected by the law in question. There was no suggestion that he was liable to conviction. Nor had the second and third applicants demonstrated that they were genuinely acting in the

public interest and that the public had a sufficient interest in the relief they sought.

[32] The third respondent further submitted that the relief sought was fatally defective as the applicants had not sought a declaration that their fundamental rights had been infringed.

[33] Lastly, Parliament submitted that the legislative objective was to protect the sovereignty of Zimbabwe, its economy and government. The measures taken were rational and reasonable in order to meet that objective. The penalties provided in the section were intended to be a deterrent.

[34] In its determination, the High Court dismissed all the preliminary points raised by the respondents. On the issue of standing, it held that what is improper is for a litigant to seek to litigate under more than one category of standing under s 85(1) of the Constitution. In this case, the applicants had predicated their standing on separate causes of action under s 85(1). It found nothing untoward with that approach. The Court further found that, although the draft order had not sought a declaration of the infringement of fundamental rights, the founding affidavit had clearly substantiated the basis for such a declaration and had identified the provisions allegedly violated by the impugned law. The Court further observed that the issue of the death penalty no longer presented a live dispute, Parliament having since passed legislation abolishing the death penalty.

[35] On the merits, the Court accepted that the rights allegedly violated were s 58 (freedom of assembly and association), s 61 (freedom of expression) and s 69 (fair trial). It held that the purpose of the meeting proscribed by s 22A(2) was clearly inimical to the interests of Zimbabwe as a nation, as no person can, under the guise of fundamental rights, seek military intervention in Zimbabwe. The Court therefore dismissed the claim that s 22A was unconstitutional.

[36] As regards s 22A(3), the Court *a quo* found that the phrase "intentionally partake" was not defined, was vague and criminalised even mere attendance. It questioned why different terms – "actively partake" which was defined in the section, and "intentionally partake" which was not, were used. Noting the concession by counsel for the first and second respondents that the phrase "intentionally partake" had been inserted in error and that the correct phrase should have been "actively partake", the Court concluded that the section was afflicted by vagueness and imprecision to the extent that the section could not be said to meet constitutional muster. The Court further found that the penalties were not consistent with the Constitution. Revocation of citizenship was permissible in very limited circumstances, which was not the case in the matter before it, nor was it apparent why the attenuation of the rights to vote and stand for public office under s 67 of the Constitution had been made part of the criminal process.

[37] In the result, the Court dismissed the claim that s 22A(3) was not consistent with the Constitution. It, however, granted the claim for the declaration of s 22A(3) as being invalid. The latter section was said to be invalid for infringing ss 39,

58, 61, 67 (3) and 69 of the Constitution. Pursuant to that declaration, the record of the proceedings was then transmitted to the Registrar of this Court for confirmation of the invalidity of s 22A(3) of the Criminal Law Code, inclusive of the additional sanctions provided under that section.

APPLICANTS' SUBMISSIONS BEFORE THIS COURT

[38] In their heads of argument, the applicants have submitted as follows. Each applicant approached the Court *a quo* in a specific category under s 85 (1). They need not have waited until they were arrested in order to establish their *locus standi*. It was further suggested that, being journalists, the first and second applicants had brought to Court a matter of public importance and had demonstrated how the impugned law was likely to affect their work. It was further suggested that the term "intentionally partake" had not been defined and therefore the law in question was criminalising mere attendance at a meeting, even if one remained quiet throughout the deliberations of the meeting. The gravamen of the decision *a quo* was that the section was vague and therefore unconstitutional. The first applicant had given examples of potential meetings in respect of which criminal sanctions can be invoked. They also argued that the penalties have a chilling effect and are disturbingly disproportionate to the offence created by the impugned law. Lastly, the applicants submitted that the law could not properly provide for the termination of citizenship outside the provisions of the Constitution, nor provide for the disqualification of a person as a voter or to hold public office.

[39] The applicants further submitted that, in light of the decisions of this Court in *Mawarire* and *Combined Harare Residents Association*, the point taken on standing cannot be seriously entertained. Further, in *Mudzuru*, *infra*, the applicants had approached the Court under both ss 85 (1)(a) and 85(1)(d) but were heard. In *Chamisa*, the Court eschewed over reliance on technicalities. Lastly, the finding *a quo* that the law violated ss 39 and 67(3) of the Constitution was said to be *pro non scripto* and that the substance of the claim lay in the three rights allegedly infringed by the law.

SUBMISSIONS BY THE FIRST AND SECOND RESPONDENTS BEFORE THIS COURT

[40] In their heads of argument before this court, the first and second respondents have submitted that there was no imminent threat to any of the applicants' rights. There was therefore no live dispute. The reference in the impugned section to "intentionally partake" was an obvious error and the phrase should have read "actively partake" which is defined in the section. It was denied that the penalty of revoking citizenship or the right to vote and hold public office was inconsistent with the Constitution.

[41] They submitted further that the rights in s 67(3) are not absolute and are subject to other provisions of the Constitution. Section 86 of the Constitution provides for limitations to fundamental rights. Section 22A(3) is a law of general application as provided in s 86. The revocation of citizenship and disqualification to vote and hold public office, measured against the seriousness of the offence, are fair, reasonable and justifiable in a democratic state, as it

would not be in the public interest for people who actively engage in discussions to have sanctions or trade boycotts imposed on Zimbabwe to enjoy the rights in question.

SUBMISSIONS BY THE THIRD RESPONDENT (PARLIAMENT) BEFORE THIS COURT

[42] Before this Court, Parliament submitted as follows. The matter was not properly before the Court *a quo* because, in the relief sought, the applicants did not seek a declarator that the law in question violated certain fundamental rights. Without such a declaration, the applicants could not have sought an order invalidating the law in question. Further, the Court *a quo* had determined that the rights under ss 39 and 67 (3) had been violated, notwithstanding that these were not part of the relief sought, which related to ss 58, 61 and 69(1) of the Constitution. A declaration that ss 39 and 67(3) had been violated had been sought in another matter heard by the same Court in the *Media Alliance* case in HC 4849/23. The Court *a quo* had improperly conflated the relief sought in the two matters that it had heard.

[43] On the phrase "intentionally partake", Parliament submitted that it was a misdirection on the part of the Court *a quo* to say, because the words were not defined, they were therefore ambiguous. The Court should have applied other methods of interpretation in order to ascertain the true intention of Parliament. The Court should have considered that the mischief sought to be addressed was that of Zimbabweans who knowingly engaged in meetings designed to impose sanctions or a trade embargo on the country. The phrase was aimed at citizens

or residents who take steps on purpose and are aware that the meeting they partake in is designed to supplement or enlarge sanctions. The intention was to prevent, deter, discourage and punish persons who deliberately attend meetings with hostile foreign countries or organisations that seek to cause harm. As it is impossible for all words in a statute to be defined, it was the duty of the Court to ascertain what the intention of the legislature was. The Court *a quo* relied on the dictionary meaning of the phrase and came up with two possible interpretations. It was on that basis that the Court *a quo* concluded that the provisions were vague, imprecise and ambiguous. The Court should have considered which of the two meanings was consistent with the Constitution.

[44] As regards the fair trial rights under s 69(1), Parliament denied that the applicants' rights were infringed. It further submitted that the Court *a quo* had gone to great lengths to emphasise the broadness of the rights of association and freedom of expression but had not thereafter considered whether such rights could properly be limited in terms of s 86 of the Constitution. A citizen cannot claim the right to associate with foreign agents whose aim is to impose sanctions on Zimbabwe. The legislative objective is sufficiently important to justify the limitation of the two rights in order to deter citizens who call for sanctions to be imposed. There is a need to impair the rights under ss 58 and 61 to prevent citizens from giving information to other countries that is used to justify sanctions. As a punishment and deterrent, the right to vote and stand for public office is curtailed in respect of those who call for sanctions or a trade embargo against Zimbabwe. The country cannot afford to have persons who call for sanctions against Zimbabwe being eligible to hold public office at the same time.

ISSUES FOR DETERMINATION

[45] Confirmation proceedings are in the nature of a review. The Court must satisfy itself whether the challenge to the constitutional validity of the law was properly before the lower court. This means that the Court must, *inter alia*, determine whether the lower Court had jurisdiction over the matter, whether the applicant or applicants in the matter *a quo* had the requisite *locus standi* and whether a genuine dispute existed between the parties, justifying a claim of a probable constitutional violation. Where a claim does not involve an actual or potential harm to rights or interests, no proper challenge to the validity of a law can be sustained. Lastly, the Court must determine whether the order of constitutional validity made by the Court *a quo* was correctly made.

[46] That the High Court had jurisdiction to entertain an application filed under s 85(1) there can be no doubt - see s 171(1) (c) of the Constitution and r 107 of the High Court Rules, 2021. In *Combined Harare Residents Association and Ors* v *The Minister of Local Government, Public Works and National Housing*, CCZ 3/24, this Court accepted, at para 94, that the High Court has jurisdiction to entertain a direct challenge to the constitutionality of a law. This Court, further accepted that the High Court has jurisdiction, both in terms of s 85(1) and outside of s 85(1), to entertain a direct challenge to the constitutional validity of a law. More specifically, at para 101, this Court stated:

> "….by command of the Constitution itself, the High Court has jurisdiction to entertain applications that impugn the constitutional invalidity of statutes and that in doing so, a party need not approach the Court under s 85 of the Constitution."

[47] The High Court, therefore, had the requisite jurisdiction to entertain the application. Whether or not it correctly handled the other related issues that came before it is a completely different matter. This brings us to the next issue that requires determination, namely, whether the application proceedings brought by the three applicants before the Court *a quo* were irregular, as argued by the respondents.

THE BASIS OF THE APPLICATIONS A QUO

[48] The respondents have taken issue with the propriety of the second and third applicants' reliance on the first applicants founding affidavit and the relief he sought, notwithstanding that they had approached the Court under s 85(1)(d), which allows one to approach the Court in the interest of the public. The first applicant had approached the High Court in terms of s 85(1)(a) of the Constitution alleging, in his founding affidavit, that the impugned law was in breach of his right to a fair public trial provided for under s 69(1), the right to freedom of assembly under s 58 and the right to freedom of expression and the media under s 61. In a separate founding affidavit attached to the same application, the second applicant stated that he was approaching the Court *a quo* in the public interest under s 85(1)(d), alleging a violation not just of ss 58, 61 and 69 (1) but also the rights under s 48 of the Constitution. He stated that "for a full elaboration of the background and detail of the legality of the above section, I beg leave to incorporate herein with the necessary modifications, the affidavit of the 1st applicant" and that "as a long-standing journalist, I believe I have *locus standi* to bring the instant application". The third applicant also

attached its own founding affidavit to the application, stating that, as a trust, it was approaching the Court under s 85(1)(d) of the Constitution. It stated that "it attends a multitude of meetings locally and internationally with different human rights bodies and individuals discussing human rights issues" and that "any of its meetings can therefore potentially be sanctioned…" It also sought a declaration that ss 22A and 20 (1) of the Criminal Law Code violated rights under ss 48, 58, 61 and 69(1) of the Constitution.

[49] I digress momentarily to deal with criticism levelled against this Court by the applicants. As previously noted, the applicants, in dealing with the preliminary points raised by the respondents in their heads of arguments, went on to criticise this Court describing it as a "legal regime that has heightened constitutional technicalities….so as to bar litigants limited development of constitutional law and the realization of constitutional rights" and that the adherence to technicalities was "an infringement of litigants right of access to the Courts…guaranteed under s 69 (3) of the Constitution of Zimbabwe."

[50] As the record of the proceedings before the Court *a quo* will reveal, this attack on the integrity of this Court came from nowhere. It was a generalised attack and not substantiated in any way. It is unclear what the purpose of such a submission was. Parties engaged in litigation are entitled to take preliminary points on weighty procedural points and points of law which may be dispositive of a matter. It seems to me that the basis of the complaint by the applicants was that, because s 85 (1) of the Constitution has widened *locus standi* for litigants

seeking to vindicate their fundamental rights, the Court should at no stage entertain any preliminary objections on matters of standing. This cannot be correct. As will be demonstrated later in this judgment, notwithstanding the wide approach to standing ushered in by the new Constitution, there are still limits. Each category of standing under s 85(1) has its own requirements, an issue I will advert to later in this judgment.

THE FILING OF THREE SEPARATE FOUNDING AFFIDAVITS IN THE SAME APPLICATION

[51] The issue that arises is whether it was appropriate for the applicants, who had different causes of action, to file three founding affidavits in the same application, the latter two championing public interest but predicated on the founding affidavit of the first applicant in which relief was sought in his individual capacity. Although triggered by the promulgation of s 22A of the Criminal Law Code, the causes of action were different and exclusive. Each had to meet certain requirements. In my view, each applicant should have filed a separate application impugning the law in question on the basis of its stated cause of action and standing. For the second and third applicants to simply incorporate by reference the contents of the first applicant's founding affidavit appears to me not only irregular but also unprecedented. The High Court should have asked the parties to address it on what appeared to be an irregularity – an irregularity that inevitably affected the question of their standing. The Court *a quo*, in my opinion, should not have ignored the irregular filing of three founding affidavits in the same application seeking the same relief but doing so through different causes of action. The filing by the applicants of three separate affidavits dealing

with different causes of action in the same application had the effect of obfuscating the different causes of action and was clearly irregular. For this reason, the application should have been struck off the roll.

THE PROPRIETY OF THE RELIEF SOUGHT

[52] In their submissions before the Court, the respondents have argued that the applicants did not, before the Court *a quo*, seek a declaration of the infringement of their fundamental rights. The draft order before the Court *a quo* merely sought a declaration that s 22 A of the Criminal Law Code be declared unconstitutional.

[53] I am inclined to agree that the draft order was not only unclear but also incomplete. The order sought could not have been made in the absence of a finding that certain of the applicants' fundamental rights had been violated. The suggestion now made by the applicants that the body of the founding affidavits they filed had made it clear that such a declarator was sought is not sufficient. It is for the applicant to clearly state in a draft order what order he or she seeks from the Court. We have previously said so. In *Majome* v *Zimbabwe Broadcasting Corporation & Ors* 2016 (2) ZLR 27 (CC) p.31, this Court stated:

> "A relief that does not contain a declaration of a finding of infringement of a fundamental right or freedom and *ipso facto* constitutional invalidity of the conduct or legislation under attack has no legal justification. The substance of the relief sought by the applicant is the exhortation by the court to the respondents to discharge their constitutional obligation to respect, protect, promote and fulfil the applicant's fundamental rights and freedom. It is not the duty of a court to remind other duty-bearers to observe their duties in the absence of proven infringement of a fundamental human right or freedom."

The Court *a quo* should therefore have struck the matter off the roll for the above reason. The irregularity was not one that could have been ignored as it went to the root of the application.

WHETHER THE COURT A QUO GRANTED RELIEF NOT SOUGHT BY THE PARTIES

[54] Before this court, counsel for the third respondent has argued that the Court *a quo* granted relief different from that sought by the applicants. Counsel argued that in their founding affidavits, the applicants specifically challenged s 22A(3) of the Criminal Law Code, on the basis that it infringed rights protected under ss 56(1) and (3), 58(1), 61(1), and 69(1) of the Constitution. The court *a quo*, however, framed its order as follows;

> "1. The application for a declaration of constitutional invalidity in respect of section 22 A (2) of the Criminal Law (Codification and Reform) Act [Chapter 9:23], as amended by the Criminal Law (Codification and Reform) Amendment Act No. 10 of 2023, ("the Criminal Law Code") be and is hereby dismissed.
>
> 2 (a) The application for a declaration of 1 constitutional invalidity in respect of section 22 A (3) of the Criminal Law Code be and is hereby granted.
>
> b) *Section 22 A (3) of the Criminal Law Code be and is hereby declared to be constitutionally invalid as it infringes sections 39, 58, 61(1) and 67 (3) and 69(1) of the Constitution.*
>
> 3 There is no order as to costs." (my emphasis)

[55] It is apparent, from the wording of the order, that the Court *a quo, inter alia*, determined that there had also been an infringement of ss 39 and 67(3) of the Constitution, which were not part of the relief sought by the applicants. By doing so, the court went beyond the dispute presented to it by the parties. The Supreme

Court, in *Nzara & Ors* v *Kashumba N.O. & Ors* 2018 (1) ZLR 194 (S) at p. 200 made it clear that the function of a court is to determine disputes placed before it by the parties and not to go on a frolic of its own. It stated at para. G as follows:-

> "The function of a court is to determine disputes placed before it by the parties. It cannot go on a frolic of its own. Where a point or a law or a factual issue exercises the court's mind but has not been raised by the parties or addressed by them neither in their pleadings or in submissions from the bar, the court is at liberty to put the question to the parties and ask them to make submissions on the matter.

[56] Similarly, in *Chiwenga* v *Mubaiwa* SC 86-20, at p.15, the same Court stressed that it is:

> "… therefore settled law that a judicial officer is strictly bound by the issues pleaded by the parties. Going on a frolic of his/her own and determining issues not pleaded or raised by the parties constitutes a fatal procedural irregularity."

[57] *In casu*, the applicants had confined their challenge to the validity of s 22 A(3) on the basis that it violated ss 56(1) and (3), 58(1), 61(1), and 69(1) of the Constitution. The court *a quo*, however, extended its reasoning to provisions not relied upon by either party, namely ss 39 and 67 (3). This amounted to granting relief not sought by the parties, contrary to established principles of procedural fairness. The order granted by the Court *a quo* in that regard was therefore defective. It cannot, therefore, be sustained.

LOCUS STANDI UNDER s 85(1) OF THE CONSTITUTION

[58] Before the Court *a quo*, the third respondent raised the issue of the applicants' *locus standi*, arguing that they lacked a substantial interest in the matter. The Court *a quo*, however, dismissed the point in *limine*, holding that the new Constitution had widened the standing of litigants to approach a court to

vindicate their fundamental rights. The third respondent has, before this court, again submitted that the applicants lacked the requisite standing to seek relief because there was no live dispute between the parties.

[59] It is correct that, under the common law, *locus standi* requires a party to have a direct and substantial interest in the matter being litigated – in other words, a legal interest in the subject matter of the action which could be prejudicially affected by the judgment of the Court. However, the position is now settled that s 85(1) of the current Constitution has broadened access to the Court by delineating various categories of persons or entities entitled to approach the Court to vindicate fundamental rights. A Court is now obliged to adopt a broad and generous approach to standing in respect of those rights and eschew over reliance on technicalities in order to afford full protection to fundamental rights and freedoms. As noted earlier in this judgment, whilst such standing in rights matters is now very broad, certain standing requirements need to be met.

[60] There are five categories of "persons" who are entitled to approach a court under s 85(1) of the Constitution. This judgment focuses on only two of these, namely persons acting in their own interests and persons acting in the public interest. Contrary to the averments by the applicants, both in their heads of argument and oral submissions, the two categories are not the same and have different requirements. As highlighted by the authors Iain Currie & Johan De Waal in *The Bill of Rights Handbook, Sixth Edition*, at p.77, an applicant under s 85(1) must demonstrate, with reference to the categories listed thereunder, that there is sufficient interest (not necessarily their own) in obtaining the remedy they seek.

[61] If an applicant approaches the Court in his or her own interest to vindicate or enforce a fundamental right or freedom, he or she must have a sufficient interest in the relief sought. If he or she does so on behalf of another person, the applicant must show that that other person has a sufficient interest in the relief sought. No test has been formulated on when an interest will be regarded as "sufficient" but it goes without saying that the person, or group whose interest they rely on, must at least be directly affected by a law or conduct before he or she will have standing to challenge it. For this reason, an association acting on behalf of its members must show that the members have a sufficient interest in the remedy or relief sought. A person acting in the public interest must show that the public has a sufficient interest in the remedy sought - *The Bill of Rights Handbook, op. cit.* at pp 80, 83.

[62] A person acting in their own interest must demonstrate that a contested law or conduct directly affects his or her interest or potential rights or interests - see *Mudzuru & Anor* v *Minister of Justice, Legal and Parliament Affairs & Ors* CCZ 12/15. Whilst such interest must be generally and broadly interpreted, the position is now settled that the interest must be real and not hypothetical or academic. It is for this reason that an own - interest litigant may be denied standing even though the result would be that an unlawful decision stands. As highlighted in *Ferreira* v *Levin NO* 1996 (1) 5A 984 (CC), relying on *Oudekraal Estates (Pty) Ltd* v *City of Cape Town* 2004 (6) SA 222 (SCA), a successful challenge to a public decision can be brought only if the right remedy is sought

by the right person in the right proceedings. This is an aspect that was almost completely overlooked by the Court *a quo*.

[63] In the case of a person acting in the public interest - described in *The Bill of Rights Handbook, op.cit*, as the most difficult of the categories under s 85(1), it must be shown, firstly, that a person is acting in the public interest and secondly, that the public has a sufficient interest in the relief sought. As stressed in *Mudzuru*, *supra*, s 85(1)(d) is based on the presumption that the effect of the infringement of a fundamental right impacts upon the community at large or a segment of the community in such a way that there would be no identifiable persons or determinate class of persons who would have suffered legal injury. The procedure cannot, however, be used to protect private, personal or parochial interests.

[64] The term "public interest" may include different categories of public interest. Therefore, the task a court faces is to ascertain, amongst others, the public interest to be served. The question is always whether the alleged infringement of a fundamental right or freedom has the effect of prejudicially affecting or potentially affecting the community at large or a significant section or segment of the community. The test includes cases of marginalised or underprivileged persons in society who, because of reasons such as poverty, disability, socially and economically disadvantaged positions, are unlikely to approach a court on their own to vindicate their rights. The interest to be protected is therefore that of the public as opposed to that of an individual. The law thus recognises that

there may be circumstances in which it will be in the public interest to bring proceedings even if there is no live dispute between particular litigants.

[65] Whether a person is acting in the public interest is an objective test, not dependent on what the person says. A number of factors have been laid down to assist the Court in determining whether or not a person is genuinely acting in the public interest. The intention in creating public interest litigation as part of s 85(1) of the Constitution was to ensure that it is used for its intended purposes and not abused by busy bodies or other meddlesome interlopers for oblique purposes unrelated to the vindication of public interest. It is for this reason that a court will be circumspect in affording a litigant standing in public interest litigation and require an applicant to show that he or she is genuinely acting in the public interest. Some of the factors to be considered are highlighted in the decision of this Court in *Mudzuru*, s*upra*, at p 20 of the judgment

DID APPLICANTS HAVE STANDING?

[66] Proceeding from the foregoing discussion, the question that arises is whether the applicants demonstrated before the Court *a quo* that they had the requisite standing. As noted, a hybrid application was filed before the Court *a quo*.

[67] The first applicant stated in his founding affidavit that, as a journalist with over twenty (20) years' experience in the profession, the impugned law affected his rights and those of other media practitioners. He stated that he has the right to attend meetings and present reports but could be penalised for merely attending a meeting which ends up discussing penalties against Zimbabwe even if he is

quiet throughout the discussions. The question is, therefore, whether he demonstrated that his individual rights or interests were likely to be violated as a result of his prosecution and/or conviction on a charge of contravening s 22A(3) of the Criminal Law Code. As stated in *Mudzuru, supra*, at p. 10 of the judgment, a person would have standing if he or she could be liable to conviction for an offence charged under the law even though the unconstitutional effect was not directed at him or her *per se*.

[68] The first applicant gave examples of the type of meetings that could be convened at which penalties could be considered against Zimbabwe. These included possible meetings at *fora* such as the World Bank, the World Health Organisation, and the African Union. His position was not that he was due to attend any of those meetings or that there was a real likelihood that he would do so. No reasonable probability of such an infringement occurring was demonstrated.

[69] The phrase "likely to be contravened" in the former Constitution is similar to the phrase "likely to be infringed" in the current Constitution. In *United Parties* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* 1997 (2) ZLR 254 (S), at 259, the phrase was said not to embrace any fanciful or remote prospect of the Bill of Rights being contravened. Rather, it meant a reasonable probability of such a contravention occurring. It was said there must exist a realistic or appreciable probability and not merely a reasonable possibility of such infringement taking place for one to have standing.

[70] In my view, whilst he had standing, the first applicant did not, before the Court *a quo,* demonstrate that there was a reasonable probability that any of his fundamental rights were likely to be violated.

[71] In respect of the second applicant, no sufficient interest by the public was demonstrated before the Court *a quo*. He did not show in what way the generality of the people would have an interest in the relief he was seeking. He did not show which segment of the public was likely to be affected by the law or how a segment of the public was likely to be adversely affected by the alleged violation of fundamental rights. His interest was more as a journalist who could attend any one of the meetings he alluded to. How that translated to a sufficient interest by the public was not demonstrated.

[72] The above remarks apply equally to the third applicant, a trust registered in accordance with the laws of this country. The third applicant did not show how the general public stood to benefit from the relief that it was seeking before the Court *a quo*. What became clear was that the third applicant was seeking relief, not to protect vulnerable members of the public but rather its own members. In its founding affidavit, it stated that it "attends many meetings locally and internationally" and that "any of the meetings can be sanctioned under s 22A of the Act." Like the second applicant before it, it simply incorporated the contents of the first applicant's founding affidavit into its own affidavit. There was a failure to appreciate that the first applicant had approached the Court in his individual capacity and that a person who approaches the Court in the public interest must demonstrate that the public or a section of the public has a sufficient interest in the relief sought.

[73] I am therefore satisfied that, before the Court *a quo,* all three applicants did not establish the necessary standing to approach the Court *a quo* seeking the invalidation of the law in question.

NO REAL, EARNEST AND VITAL CONTROVERSY

[74] The relief sought by the applicants before the Court *a quo* was, therefore, predicated on a theoretical set of facts and in respect of which the public at large had no interest. The applicants had averred a likely infringement of rights. No real possibility of the violation of their rights or that of the public was demonstrated. The matter, therefore, remained academic and premature.

[75] The absence of a real and earnest dispute undermined the applicants' standing to claim the relief they sought. *Locus standi* depends on the existence of a real controversy, in this case, a violation affecting the rights of an individual or those of the public at large. The Court *a quo*, in its judgment, reasoned that, because the first and second applicants were journalists, they had standing, as the current approach is to widen standing. It is apparent that no thought was given to the requirements that each of the categories under s 85 (1) entailed. Each category is different and the basis for reliance on any one of the categories must be clearly demonstrated. In the absence of standing having been proven, the Court *a quo* should have struck the matter off the roll.

WHETHER THE ORDER OF CONSTITUTIONAL INVALIDITY GRANTED BY THE COURT A QUO WAS CORRECTLY MADE.

[76] In its determination on the merits, the Court *a quo* found that s 22A(3) of the Criminal Code lacked precision and could lead to arbitrary arrests and prosecutions, especially of journalists or government officials, thereby violating constitutional rights such as the right of freedom of expression and assembly. The court *a quo* further held that the additional penalties under s 22A(3), especially the revocation of citizenship, were unconstitutional, as they contravened ss 39 and 67(3) of the Constitution.

[77] Although citizenship is a foundational aspect of national identity, the right to citizenship is not contained within the Bill of Rights. Accordingly, litigants cannot enforce these rights under s 85 of the Constitution. Section 85 clearly sets out that it is the fundamental rights and freedoms that may be enforced though its provisions. The logical corollary is that rights not classified as fundamental rights or freedoms may only be enforced under other provisions of law, but not in terms of s 85. The Constitutional Court of Zimbabwe has consistently emphasised this position. In *Mudzuru,* at p. 13 of the judgment, this Court stated that:

> "Section 85(1) of the Constitution is the cornerstone of the procedural and substantive remedies for effective judicial protection of fundamental rights and freedoms and the enforcement of the constitutional obligation imposed on the State and every institution and agency of government at every level to protect the fundamental rights in the event of proven infringement.....
>
> …The fundamental principle is that every fundamental human right or freedom enshrined in Chapter 4 is entitled to a full measure of effective protection under the Constitutional obligation imposed on the State."

Similarly, in *Prosecutor General, Zimbabwe* v *Telecel Zimbabwe (Pvt) Ltd* CCZ 10/15 this court stated at p. 7:

> "What is clearly evident from this provision is that the relief sought and to be granted the Court in terms of the section must relate to fundamental rights and freedoms enshrined in the relevant Chapter and nothing else..."

[78] Moreover, as already observed, the Court *a quo* had not been called upon to make a determination on whether s 22A(3) also violated ss 39 and 67(3) of the Constitution. That relief had been sought in the *Media Alliance* matter which raised similar issues and which was also determined by the same Court. The Court conflated the details of those two cases and ended up making a determination not sought by the applicants. The determination it made was not competent in a s 85(1) application. It must therefore be set aside not only on this basis but also for the reason that the Court *a quo* went on a frolic of its own – see *Chiwenga, supra,* at p. 15.

THE VALIDITY OF S 22A(3)

[79] In its judgment, the Court *a quo* found that s 22A(3) of the Criminal Law Code lacked precision and that the confusion, vagueness, imprecision or ambiguity could have been cleared by a separate definition of the term "intentionally partake" along the same lines as provided for "actively partake". The Court found that if a separate definition was considered to be unnecessary, then the same expression i.e. "actively partake" should have been used in which case it would then have been easily covered "by the definition in s 22A(1) which, as the provision currently stands, only relates to s 22A(2)". The Court further found that the lack of precision could lead to arbitrary arrests and prosecutions, especially of journalists and government officials, thereby violating

constitutional rights such as the right to freedom of expression and assembly. It concluded that "the vagueness, impreciseness or ambiguity provided a reasonable basis for the constitutional invalidity of s 22A(3)" and that the matter was further compounded by the additional penalties provided for under s 22A(3), which the Court considered drastic and draconian.

[80] I am inclined to agree with counsel for the third respondent that the Court *a quo* failed to properly apply the general rules of statutory interpretation. The Court should have invoked the golden rule of interpretation once it formed the view that the term "intentionally partake" was vague and imprecise. It came up with two possible meanings of the word "intentionally" and on that basis concluded that the impugned provision was vague, imprecise and ambiguous. It consequently declared the law unconstitutional for that reason. I am in no doubt that the Court *a quo* was in error in doing so.

[81] Where a court is faced with a word capable of two different meanings, it must adopt an interpretation that does not result in absurdity. As stated in *R* v *City of London Court Judge* (1980) 1 QB 273, 290:

> "…. If the words of an Act admit of two interpretations, then they are not clear: and if one interpretation leads to an absurdity and the other one does not, the Court will conclude that the legislature did not intend to lead to an absurdity, and will adopt the other interpretation".

In this regard, attention may also be drawn to the decision of this Court in *Diana Eunice Kawenda* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* CCZ 3/22, at pp 15-16.

[82] In any event, it seems to me, that the Court *a quo* was wrong in concluding that because the word "intentionally" was not defined and capable of two meanings, then it was ambiguous and consequently invalid. That is not how the Courts approach the question of interpretation of statutes. The starting point is the grammatical meaning of words. If the ordinary and grammatical meaning of the words in a provision leads to an absurdity, then that meaning must be departed from in order to ascertain the true intention of the lawgiver. This position was underscored in *Tapedza & Ors* v *Zera & Anor* 2020(1) ZLR 446 at p 448 F-H, where the Supreme Court made the following pertinent remarks that:

> "it is an established principle of law that when interpreting a statute, the first cannon of interpretation to be applied is the golden rule of interpretation . This rule is to the effect that where the language used in a statute is plain and unambiguous, it should be given its ordinary meaning unless doing so would lead to some absurdity or inconsistency with the intention of the legislature. A provision of a statute should be given a meaning which is consistent with the context in which it is found. This position was laid down in *Chegutu Municipality* v *Manyora* 1996 (1) ZRL 262 (S) at 264 D-3, where McNally JA said:
>
> > "There is no magic about interpretation. Words must be taken in their context. The grammatical and ordinary sense of the words is to be adhered to, as Lord WENSELYDALE said in Grey v Pearson (1857) 10 ER 1216 at 1234, 'unless that would lead to some absurdity, or some repugnance or inconsistency with the rest of the instrument, in which case the grammatical and ordinary sense of the words may be modified so as to avoid that absurdity and inconsistency, but no further."

[83] This Court has also previously stressed the need, in a situation in which the ordinary meaning of words results in an absurdity, to ascertain the true intention of Parliament in order to give effect to the true meaning of a word. In *Zimbabwe Electoral Commission & Ors* v *Commissioner General, ZRP & Ors* 2014 (1) ZLR 405 this Court stated thus at p 413 B-E of the judgment:

> "Another rule of construction, the mischief rule, can be called in aid at this juncture. In order to assist the court in deciding on the true intention of the legislature, the Court may have regard to 'the mischief' that the Act was designed to remedy. Thus the Court may look not only at the language of

the statute, but also at the surrounding circumstances, and may consider its objects, its mischiefs, and its consequences. In this regard, in *S* v *Meredith* 1981 (3) SA 29 (ZAD) at 33, BARON JA had this to say:

> 'It is trite that words and phrases cannot be constructed in *vacuo*; their meaning can be discerned only in the context in which they are used. I think it is worth citing the words of Viscount SIMONDS in *Attorney-General* v *HRH Prince Ernest Augustus of Hanover* (1957) 1 All ER 49 at 53:
>
> > "For words, and particularly general words, cannot be read in isolation; their colour and content are derived from the context. So it is that I conceive it to be my right and duty to examine every word of a statute in its context, and I use context in its widest sense which I have already indicated as including not only other enacting provisions of the same statute, but its preamble, the existing state of the law, other statutes in *pari materia*, and the mischief which I can, by those and other legitimate means, discern that the statute was intended to remedy.'"

[84] The Court *a quo* did not take heed of the above remarks. It should have asked itself what mischief the legislature had intended to address, which was that of citizens and permanent residents engaging in meetings with foreign governments or entities whose object was to impose sanctions on Zimbabwe.

[85] The Court could also have adopted the purposive approach to the interpretation of statutes in order to ascertain the correct meaning of the phrase "intentionally partake". This was underscored in *Tapedza, supra*, where the Supreme Court, at p 450 B-C, cited with approval the following remarks by Lord Denning in *Buchanan & Co* v *Babco Ltd Ltd* (C.A) 1977 QBD 208, 213 on the method of interpretation adopted by the European Court of Justice:

> "They adopt a method which they call in English by strange words - at any rate they were strange to me – the "schematic and teleological" method of interpretation. It is not really so alarming as it sounds. All it means is that the judges do not go by the literal meaning of the words or by the grammatical structure of the sentence. They go by the design or purpose which lies behind it. When they come upon a situation which is to their minds within the spirit – but not the letter- of the legislation – they solve the problem by looking at the design and purpose of legislation - at the effect which it was sought to achieve. They then interpret the legislation so as to achieve the desired effect. This means

> that they fill in gaps, quite unashamedly, without hesitation. They ask simply: what is the sensible way of dealing with this situation so as to give effect to the presumed purpose of the legislation? To our eyes – short-sighted by tradition – it is legislation, pure and simple. But to their eyes, it is fulfilling the true role of the courts. They are giving effect to what the legislature intended, or may be presumed to have intended."

[86] Had the Court *a quo* adopted the correct approach to the interpretation of statutes, it would, without doubt, have concluded that the phrase "intentionally partake" was intended to apply to a citizen or permanent resident who purposefully and intentionally attended and participated in a meeting designed to implement or enlarge sanctions or a trade boycott against Zimbabwe. The intention in s 22A is to promote the sovereignty of Zimbabwe by deterring and discouraging citizens and permanent residents from inciting other countries or entities to impose sanctions or engage in a trade boycott against Zimbabwe or calling for the destruction of Zimbabwe through military intervention.

[87] The suggestion by the Court *a quo* that the confusion, vagueness and imprecision could have been cleared by a separate definition of the term "intentionally partake" does not correctly reflect the law in this jurisdiction. It is a truism that most of the words in a statute or statutory instrument are not defined. It is one of the responsibilities of a court to ascertain the intention of Parliament where the words used are not defined. Indeed, in *Chari* v *The Ministry of Justice, Legal and Parliamentary Affairs N.O. & Anor* HH 300/25 the High Court itself acknowledged that not:

> "… all words used in a statute must be defined by the Legislature. The Courts still have the role to interpret statutes and, in that regard, apply various canons and aids of statutory interpretation to find the meaning of the words used or the intention of the legislature."

The approach of the Court *a quo* in the matter before it was therefore incorrect. Its determination cannot therefore be confirmed.

[88] There is a further reason why the determination by the Court *a quo* cannot be allowed to stand. In determining the validity of s 22A(3), the Court *a quo* ought to have taken into account all the provisions of the section in order to ascertain the true intention of the legislature. The position is settled that a statute should be construed so that effect is given to all its provisions. No part of a provision should be regarded as superfluous, void or insignificant. In short, the court must look at all the provisions in an enactment.

[89] A reading of s 22A(3) as read with s 22A(5) clearly evinces the intention of the legislature. Subsection (5) thereof provides:

> "In any prosecution for an offence against subsection (3) it shall not be a defence that the accused did not at first know or realise that the meeting which is subject to the charge involved the consideration of sanctions against or a trade boycott of Zimbabwe if after that topic was raised by any participant at the meeting the accused can be proved to have promoted, advanced, encouraged or advocated for the imposition of sanctions or a trade boycott against Zimbabwe".

[90] It is apparent that s 22A(5) was completely ignored or overlooked by the Court *a quo*. That conduct had consequences. It resulted in the Court *a quo* accepting the submission by the applicants that the legislature had created a strict liability offence and that mere attendance at a meeting, even when one is silent throughout, can attract criminal prosecution and sanctions.

[91] A reading of s 22A as a whole shows clearly that the legislature intended the word "intentionally" to be given its ordinary meaning. In ordinary parlance, it

means deliberately or wilfully. Put another way, it means done wilfully, with reason and purpose. A reading of s 22A(3) therefore shows that, where any person with reason or purpose, knowingly partakes in any meeting involving the planning or implementation of sanctions or a trade boycott against Zimbabwe and promotes the imposition of such sanctions, such person shall be guilty of the offence of wilfully damaging the sovereignty and national interest of Zimbabwe. Subsection (5) thereof expressly provides that it shall not be a defence for an accused person to aver that he or she did not at first know or realise that the meeting which is subject to the charge involved the consideration of sanctions against or a trade boycott of Zimbabwe if, *after that topic was raised by any participant at the meeting,* the *accused promoted, advanced, encouraged or advocated for the imposition of sanctions or a trade boycott against Zimbabwe*. It therefore follows that, for a guilty verdict in terms s 22A(3) to ensue, the element of intent as provided must be satisfied by the prosecution. The accused must have intentionally attended the meeting *and thereafter* made common cause with the other participants who advocated for the imposition of such sanctions.

[92] There is therefore no ambiguity attaching to s 22A(3) of the Criminal Law Code. It is clearly worded. The phrase "intentionally partake" is not shrouded in secrecy. If a person purposefully or knowingly engages in a meeting where sanctions or a trade boycott are discussed, such person will be guilty of an offence in terms of s 22 A(3) of the Criminal Law Code. Where, however, such person did not initially know that the meeting was to discuss these issues but thereafter makes common cause with other participants, such person shall be guilty of the offence. In other words, where the person attends the meeting and

thereafter disassociates himself from any discussion on the intended sanctions or does not participate in the meeting, such person shall have a defence.

[93] In addition, the Court *a quo* failed to consider whether the impugned law could be interpreted in a manner consistent with the Constitution. In other words, it failed to apply the presumption of constitutionality before declaring the law unconstitutional. The presumption of constitutionality requires a court interpreting a challenged law to commence the process of interpretation by presuming the statute being challenged to have been enacted within the parameters of the Constitution. See *Zimbabwe Electoral Commission & Anor* v *The Commissioner General Zimbabwe Republic Police & Ors supra* at p 411 B-C. There was no such presumption by the Court *a quo*.

[94] It follows, from the foregoing, that the concession by counsel for the respondent that the phrase "intentionally partakes" in s 22A(3) of the Criminal Law Code was inserted in error was not properly made. His further suggestion, both in the Court *a quo* and this Court, that such error places a duty upon the respondents to rectify it is, consequently, without merit. Clearly, there is no error in the wording of the provision, as the intention of the legislature is that a conviction can only ensue where one has deliberately taken part in the meeting.

[95] The issue that then arises is whether the Court *a quo* properly concluded that the provisions of s 22A(3) of the Criminal Law Code contravened ss 58, 61, and 69(3) of the Constitution. As already noted, the order of the Court *a quo*

improperly included rights under ss 39 and 67(3), which did not form part of the relief sought by the applicants *a quo*.

WHETHER THE RIGHT TO A FAIR HEARING WAS VIOLATED

[96] The Court *a quo* in its determination stated as follows:-

> "The other fundamental right the applicants are concerned with is the right to a fair trial, enshrined in s 69(1). This right has much to do with the principle of legality, which has already been adverted to. It involves the whole criminal justice process. This process includes arrest, formulation of charges, prosecution, conviction and sentence. The accused must be arrested and prosecuted for clearly defined charges. If the offences are widely, and vaguely defined, it creates the risk of abuse of power such as arbitrary arrest. The accused may not be able to meaningfully conduct his defence in a trial where the charge is vague and broad."

[97] As already noted, the determination by the Court *a quo* that the term "intentionally partakes" is vague, and imprecise was not correctly made. The Court *a quo* failed to invoke the various canons of interpretation in order to ascertain the true intention of the legislature, which was to punish and deter persons who intentionally and purposefully attended meetings with foreign governments and entities whose aim was to impose sanctions or trade boycott on Zimbabwe. Section 22A(3) did not, and does not, therefore, violate the right to a fair hearing enshrined in s 69(1) of the Constitution.

WHETHER SS 58 AND 61 WERE VIOLATED

[98] The Court *a quo* eloquently articulated the broadness and applicability of these two rights. The Court *a quo* expressed the view that they should be given the widest possible interpretation and that any derogation therefrom must only be in justifiable circumstances provided for by the law. The Court *a quo* cited the decision of this Court in *Kawenda* as correctly setting out the logical steps to be

followed in determining the constitutional invalidity of a law. The first is that there is always a presumption of validity in respect of existing law. Where the impugned law has two meanings, one falling within and the other without the Constitution, the Court must uphold the one falling within. If the Court finds the impugned law to infringe upon a fundamental right or freedom, or to be inconsistent with the Constitution, it must then proceed to determine whether the infringement or inconsistency is permissible in terms of s 86(2) of the Constitution.

[99] The Court *a quo* did not proceed to determine whether the derogations to ss 58 and 61 were justifiable under s 86 of the Constitution. In failing to do so, the Court committed a grave error. Its determination was therefore not in accordance with the law. On the facts of this matter, the limitations on the enjoyment of the rights in ss 58 and 61 of the Constitution are justifiable. No citizen or permanent resident can claim the right to associate with foreign countries or organisations whose aim is to impose sanctions on Zimbabwe. Nor can one claim the right to freedom of expression or communication with such entities. Such personal rights can properly be limited to safeguard the broader and greater rights of the generality of the people of Zimbabwe.

[100] The legislative objective is clearly designed to prevent, deter, discourage and punish persons who intentionally and actively participate in meetings calling for sanctions against Zimbabwe. Section 22A(3) is linked to this objective. The Court can take judicial notice of the fact that, for a very long time, the country has faced economic sanctions and has had to contend with the deleterious

consequences flowing therefrom. The use of s 22A(3) is no more than is necessary to impair the right and is a limitation that is justifiable in a democratic society based on openness, justice, human dignity, equality and freedom.

[101] The right to freedom of expression has been limited in order to counteract threats to national security by sanctioning citizens and permanent residents who may collaborate with foreign entities wishing to do the country harm.

THE PENALTY PROVISIONS OF S 22A(3).

[102] The Court *a quo* found that the imprecision that affected s 22A(3) was compounded by the additional penalties provided for under s 22A(3), which it described as draconian. On conviction for contravening the section, a person is liable to:

> " (i) a fine not exceeding level 12 or imprisonment for a period not exceeding ten years, or both;
> (ii) or *alternatively on the motion of the prosecutor*, to any one or more of the following, if the *offence is attended by aggravating circumstances* referred to in subsection (4) or (6)-
> A. termination of the citizenship of the convicted person, if the convicted person is a citizen by registration or a dual citizen:
> Provided that the convicting court shall not impose this penalty if it would effectively render the convicted person stateless;
> B. cancellation of the permanent resident status of the convicted person, if the convicted person is a permanent resident; or
> C. prohibition from being registered as a voter or voting at an election for a period of at least five years but not exceeding fifteen years; or
> D. prohibition from filling a public office for a period of at least five years but not exceeding fifteen years, and, if he or she holds any such office, the convicting court may declare that that office shall be vacated by the convicted person from the date of his or her conviction, unless the tenure of the public office in question is regulated exclusively by or in terms of the Constitution -
>
> in consideration of the sentence the court must have regard to the impact of the meeting and whether or not sanctions or trade embargo were imposed.

(4) Subject to subsections (5) and (6) *it shall be an aggravating circumstance* to a charge of wilfully damaging the sovereignty and national interest of Zimbabwe under subsection (3)-

(a) to prove that any economic sanctions or trade boycott against Zimbabwe (or against any individual or official or class of individuals or officials whose effects indiscriminately affect the people of Zimbabwe as a whole or any substantial section thereof) were implemented as a result of any action taken by the accused;

(b) if there is evidence showing beyond a reasonable doubt that, though the meeting in question did not result in economic sanctions against or a trade boycott of Zimbabwe, the person made or submitted for consideration or endorsed any statement which he or she knew to be false or had no reasonable basis for believing to be true (in which event the defence referred to in subsection (4) shall not avail him or her)."

[103] The Court *a quo* described the revocation of citizenship as a drastic measure, one not sanctioned by the Constitution. It also found that disqualification as a voter and to hold public office to be at variance with ss 39 and 67(3) of the Constitution and that there was no reason why these should have been included as part of the criminal penalty.

[104] The determination that s 22A(3) infringed ss 39 and 67(3) had not been sought and only surfaced for the first time in the judgment of the Court but, as we have already seen, had been pleaded in a similar case that was heard and determined by the same Court. Its inclusion in the order of the Court *a quo* in the present matter was clearly in error. Ordinarily this should bring the matter to a close. However, since the Court *a quo* determined that the penalty section of s 22A(3) was constitutionally invalid, the need for certainty also requires this Court to determine whether the Court *a quo* was correct in such determination.

[105] It has been suggested that the penalties relating to the termination of citizenship and disqualification as a voter and to hold public office are not

provided for anywhere in the Constitution. It is correct that they are not included in the Fourth Schedule to the Constitution. But that is neither here nor there. Section 22A(3) is clearly a law of general application in terms of s 86 of the Constitution. Such a law can derogate from the fundamental rights and freedoms set out in Chapter 4. Indeed s 67(3) itself makes it clear that the enjoyment of the rights under that section is subject to other provisions of the Constitution, which would include s 86.

[106] The only question that would arise is whether the limitation is fair, reasonable, necessary and justifiable in a democratic society based on openness, justice, human dignity, equality and freedom taking into account all relevant factors applicable in cases of derogation. My view is that the limitation is justifiable.

[107] In the first instance, it is clear that these penalties can only be imposed at the instance of the prosecutor and only if the offence is accompanied by aggravating circumstances. What constitutes aggravating circumstances is, in turn, elucidated in sub s (4). In other words, a prosecutor must prove the existence of aggravating circumstances before a Court can, alternatively, impose any one or more of the additional penalties provided in the section. The extent of the penalties depends on the degree of aggravation found by the trial Court. The maximum penalty would be imposable in the worst-case scenario.

[108] In the second instance, the limitations are permissible. The right to vote and stand for office is intended to protect and promote the growth of democracy for the socio-economic development of the country. An individual who deliberately

attends a meeting whose agenda is the imposition of sanctions or a trade embargo against Zimbabwe and actively partakes in such meeting cannot cry foul if the right to vote and stand for public office is limited. As a punishment and a deterrent, the rights have been limited in respect of those convicted of calling for sanctions in circumstances of aggravation. The length of the disqualification depends on the degree to which aggravating circumstances are found to exist. I find nothing that can be said to be constitutionally abhorrent in respect of such limitation. Such a disqualification is necessary in the interests of public order and the general economic interests of Zimbabwe

DISPOSITION.

[109] Having declared s 22A(3) to be unconstitutional, the Court *a quo* should have made a further order limiting the retrospective application of the declaration and further suspended the operation of the declaration of invalidity in order to give the responsible Minister the time and opportunity to regularise the invalidity. The Court did not do so. However, in view of the conclusion reached that the declaration of invalidity was not correctly made, the issue consequently falls away.

[110] I am satisfied that, although the Court *a quo* had jurisdiction to entertain this matter, the application before the Court, involving three applicants with separate and exclusive causes of action, was irregular. In addition, the draft order was defective. The application should therefore have been struck off the roll. More importantly, all three applicants did not demonstrate that they had the standing to approach the Court seeking an order invalidating the law in question. The

dispute before the Court *a quo* was therefore in the abstract and not justiciable. Lastly, the conclusion by the Court *a quo* that s 22A(3) was vague and imprecise and that it violated fundamental rights was predicated on a wrong approach to the interpretation of the statutes. The section as a whole does not violate the rights enshrined under ss 58, 61 and 69(1) of the Constitution.

[111] In light of the foregoing, the Court declines to confirm the declaration of invalidity which must, consequently, be set aside.

[112] On the issue of costs, the Court finds no basis to depart from its practice not to award costs in matters of this nature.

[113] In the result, the Court makes the following order:

1. The declaration of invalidity of s 22A(3) of the Criminal Law (Codification and Reform) Act, [*Chapter 9:23*] made by the High Court of Zimbabwe in Judgment Number HH 345/25 delivered on 09 June 2025 is not confirmed.
2. Pursuant to s 17(1)(a) of the Constitutional Court Act, the aforesaid judgment is hereby set aside.
3. There shall be no order as to costs.

MAKARAU JCC :

GOWORA JCC :

HLATSHWAYO JCC :

PATEL JCC :

GUVAVA AJCC :

MAVANGIRA AJCC :

Tendai Biti Law Chambers, applicants' legal practitioners

Civil Division of the Attorney General's Office, first and second respondents' legal practitioners

Chihambakwe & Partners, third respondent's legal practitioners